

State-specific security deposit recovery guide with demand letter templates and small claims court steps — Action Checklist

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KNOW YOUR LEGAL TIMELINE

- ☐ **Know Your Deadline:** Look up your state's security deposit statute by searching '[Your State] landlord-tenant code security deposits' to find the exact return deadline.
- ☐ **Document the Dates:** Write down the exact date you provided your forwarding address to your landlord because this starts the clock on their legal deadline.
- ☐ **Count the Days:** Calculate how many days have passed since you gave your forwarding address and compare it to your state's deadline to see if they already violated it.
- ☐ **Fill Your Reference Card:** Write down your state's deadline, required delivery method, itemization requirements, and penalty structure so you know exactly how strong your case is.

CALCULATE WHAT THEY OWE

- ☐ **Review Your Lease:** Read the lease to confirm the original deposit amount, any listed deductions, and any move-in condition clauses that establish what was already damaged.
- ☐ **Calculate Your Claim:** Subtract any legally valid deductions from your original deposit amount using your state's rules to determine exactly how much you should receive back.
- ☐ **Check Their Math:** Compare the landlord's itemized deductions against your state's requirements to determine whether they provided adequate documentation or just made up numbers.
- ☐ **Identify Violations:** Note every procedural error your landlord made, such as missing the deadline, failing to send by certified mail, or omitting required receipts and estimates.

TAKE ACTION TO RECOVER

- ☐ **Send a Demand Letter:** Write and send a formal demand letter stating exactly how much you believe you're owed and citing your state's law that supports your claim.
 - ☐ **Keep Everything:** Save copies of every email, text, letter, and receipt you send or receive from your landlord as evidence in case you need to go to court.
 - ☐ **File Small Claims Court:** If your landlord doesn't respond to your demand letter, file in your local small claims court where you can represent yourself without a lawyer.
 - ☐ **Know Your Leverage:** Understand that if your landlord missed the deadline or failed to properly itemize, you may be entitled to the full deposit plus statutory damages of double or triple.
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Companion to the full guide in your Lemon Squeezy library — check off each item as you complete it.